

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: JUDITH HARDING

NOTICE OF MOTION AND DECLARATION FOR JOINDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jennifer Phillips (Wife) and Respondent David Phillips (Husband).
- 2) The issues on for hearing on 9/22/2026 involve settlement proceeds which were awarded to Husband in a federal civil rights action entitled Phillips-Kerley v. City of Fresno. Husband and Wife disagree whether the settlement proceeds are community property. Attorney Alexis Gallindo is Husband's attorney of record in the civil rights action and (as described below) Mr. Gallindo states he is no longer in possession of the settlement proceeds.
- 3) On 5/4/2026, Mr. Gallindo filed a declaration signed under penalty of perjury wherein he states that on 4/30/2026, his firm transmitted a complete accounting of the settlement funds to Husband. Mr. Gallindo states that Wife refused to execute a Confidentiality Agreement with respect to the settlement proceeds and states that Wife should therefore receive only redacted filings unless the Court orders otherwise. Per the Proof of Service attached to Mr. Gallindo's 5/4/2026 declaration, Mr. Gallindo's 5/4/2026 declaration was emailed to Husband's attorney and Wife on 5/4/2026.

1 4) On 5/12/2026, Mr. Gallindo filed another declaration signed under penalty of perjury wherein he
2 references an Accounting Filed Under Seal previously submitted to this court. Per the Proof of
3 Service attached to Mr. Gallindo's 5/12/2026 declaration, Mr. Gallindo's 5/12/2026 declaration
4 was emailed to Husband's attorney and Wife on 5/12/2026.

5 5) Following a hearing on 5/14/2026, the Court made the following orders (which are memorialized
6 in the Findings and Order After Hearing filed 6/5/2026):

7 a. The Court ordered that the sum of \$45,577.72 would be withdrawn out of the settlement
8 proceeds and a check written to Rocket Mortgage. The Court notes this figure was later
9 determined to be a typographical error and the figure should have read \$47,577.72.

10 b. The Court also ordered the following: "After withdrawing his fees and costs and
11 withdrawal and submission of the \$45,577.72 payment to Rocket Mortgage, Alex
12 Galindo has agreed to, and the Court orders, that he and his firm shall place the remainder
13 of the settlement proceeds in a blocked interest-bearing client trust account in both
14 parties' names. The account shall remain blocked until further Court order."

15 6) On 7/30/2026, Mr. Gallindo filed a declaration signed under penalty of perjury. Mr. Gallindo
16 states that on 7/24/2026, his firm wired \$47,577.72 to Rocket Mortgage LLC using the wire
17 instructions provided by Rocket Mortgage. Mr. Gallindo states that on 7/28/2026, Rocket
18 Mortgage confirmed that Loan No. #2145 is current and reinstated, the foreclosure has been
19 removed, and the next payment of \$2,302.16 is due 8/1/2026. Mr. Gallindo also states that on
20 7/15/2026, he opened a blocked, interest-bearing savings account titled in the names of David
21 Phillips-Kerley and Jennifer Phillips with First Bank and deposited the remainder of the
22 confidential settlement proceeds into that account. Mr. Gallindo indicates that First Bank issued a
23 deposit receipt confirming the deposit on 7/16/2026. Per the Proof of Service attached to Mr.
24 Gallindo's 7/30/2026 declaration, Mr. Gallindo's 7/30/2026 declaration was emailed to counsel
25 for Rocket Mortgage, Husband's attorney, and Wife on 7/29/2026.

26 7) Now on for hearing is Wife's motion filed 8/3/2026 asking to join Claimant Galindo & Smith
27 LLP as a party to this case. Wife states that because Claimant Galindo & Smith LLP is in
28 possession of community property funds belonging to the parties, Claimant is "indispensable to a
29 determination of the character and disposition of these funds, and necessary to the enforcement of

1 any judgment rendered on that issue. Without joinder, this court cannot order an accounting,
2 cannot direct disbursement, and cannot enforce any judgment as to these funds.”

3 8) On 8/14/2026, Wife filed a Pleading on Joinder wherein Wife states she has received no
4 accounting of the Settlement Funds and does not know the present location of the settlement
5 funds, the balance remaining, or who exercises control over them. Wife asks the Court:

- 6 a. “For an order joining ALEXIS GALINDO and CURD, GALINDO & SMITH LLP as
7 claimants to this proceeding pursuant to California Rules of Court, rule 5.24;
- 8 b. For a judicial declaration that the Settlement Funds are community property of Petitioner
9 and Respondent in which Petitioner holds a present, existing, and equal interest, and that
10 those funds are subject to the disposition of this court;
- 11 c. For a full and complete accounting of the Settlement Funds from the date of receipt to the
12 present, including all deposits, disbursements, payees, dates, and the balance remaining,
13 served upon Petitioner;
- 14 d. For an order directing Claimants to deposit all Settlement Funds remaining in their
15 possession or control into a blocked account, or with the clerk of this court, pending
16 further order;
- 17 e. For imposition of a constructive trust upon the Settlement Funds and any identifiable
18 proceeds thereof for the benefit of Petitioner to the extent of her community property
19 interest;
- 20 f. For an order restraining Claimants from further disbursing, transferring, or encumbering
21 the Settlement Funds pending judgment in this proceeding;
- 22 g. For costs of suit incurred herein; and
- 23 h. For such other and further relief as the court deems just and proper.”

24 9) On 8/31/2026, Wife filed a Proof of Service stating that her process server served the Pleading on
25 Joinder, Declaration for Joinder, Summons (Joinder), and Tentative Ruling Instructions by
26 substituted service on a security personnel located at Mr. Gallindo’s office who refused to give
27 her name. Wife’s Proof of Service indicates that her process server thereafter mailed the
28 pleadings to Curd Gallindo and Smith LLP.

1 10) On 9/16/2026, Wife filed a Notice of Filing Declaration of Due Diligence Re: Service on
2 Claimant Alexis Galindo. Per the Declaration of Diligence signed by Wife's process server,
3 Wife's process server attempted service two times. The first time "security will not allow me
4 access" and the server was told to "call whoever I am serving and have them come down and
5 accept documents." The second time security again would not allow the server access and the
6 server "left a copy with security 'Jane Doe' who did not state name for record."

7 11) On 9/18/2026, Wife filed a Proof of Electronic Service indicating that her Motion for Joinder and
8 related moving papers were electronically served on Mr. Gallindo and Father's attorney Steve
9 Whitworth on 9/16/2026.

10 12) No pleadings have been filed either by Mr. Gallindo or Husband responding to Wife's motion for
11 joinder.

12 **B. Findings and Order**

13 1) Wife's motion to join Mr. Gallindo's firm as a party to this action was not served on Husband's
14 attorney at least 16 Court days prior to the hearing, as required by Code of Civil Procedure
15 section 1005.

16 2) The Court also finds that service upon Mr. Gallindo's firm has not been effectuated. Wife did not
17 establish that the woman who was served was "apparently in charge" of the office as required for
18 substituted service under Code of Civil Procedure section 415.20(a).

19 3) The hearing on Wife's motion for joinder is hereby continued to **Thursday, 12/3/2026 at 9:00**
20 **AM in Dept. 404.**

21 4) No later than 9/25/2026, Wife shall file a declaration (not to exceed 2 pages in length, not
22 including exhibits) addressing Mr. Gallindo's statement in his 7/30/2026 declaration that his firm
23 is no longer in possession of the settlement proceeds and that the proceeds have been deposited
24 into a blocked, interest-bearing savings account titled in the names of David Phillips-Kerley and
25 Jennifer Phillips.

26 5) Wife shall have her moving papers, a copy of her declaration addressing Mr. Gallindo's statement
27 that his firm is no longer in possession of the settlement proceeds, a copy of the Findings and
28 Order After Hearing filed 9/22/206, and a copy of the Tentative Ruling Instructions served on Mr.
29 Gallindo's firm and Husband's attorney in advance of the next hearing date by the deadlines set

1 forth in the Code of Civil Procedure. Wife shall also file a Proof of Service indicating compliance
2 with this order in advance of the next hearing date.

3 6) The Court will prepare the Findings and Order After Hearing.
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